

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Leanne Fornelli	Team: Squad #16	CCRB Case #: 201308886	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Sunday, 09/22/2013 7:33 PM	Location of Incident: § 87(2)(b)	18 Mo. SOL 3/22/2015	Precinct: 66		
Date/Time CV Reported Mon, 09/23/2013 12:43 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Mon, 09/23/2013 12:43 PM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM Abraham Echavarria	09994	936540	066 PCT
2. POM Yan Gleyzer	22582	945766	066 PCT
3. DTS Gerard Valdivia	01313	918430	ESS 06
4. SGT Junmei Zhang	04299	942744	066 PCT
5. POM Patrick Gaines	4199	923852	ESS 06
6. DTS Claudio Sanchez	4283	937475	ESS 03
7. DTS Richard Perez	02060	898275	ESS 06

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Dian Jiang	04494	948052	066 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Abraham Echavarria	Discourtesy: At § 87(2)(b) in Brooklyn and at § 87(2)(b), Police Officer Abraham Echavarria spoke discourteously to § 87(2)(b)	A . Unsubstantiated
B . POM Abraham Echavarria	Abuse: At § 87(2)(b) in Brooklyn, Police Officer Abraham Echavarria threatened § 87(2)(b) with the use of force.	B . Unsubstantiated
C . POM Abraham Echavarria	Abuse: At § 87(2)(b) in Brooklyn, Police Officer Abraham Echavarria refused to provide his shield number to § 87(2)(b)	C . Unsubstantiated
D . SGT Junmei Zhang	Abuse: At § 87(2)(b) in Brooklyn, Sergeant Junmei Zhang threatened § 87(2)(b) with the use of force.	D . Substantiated
E . POM Abraham Echavarria	Force: At § 87(2)(b) in Brooklyn, Police Officer Abraham Echavarria used physical force against § 87(2)(b)	E . Unsubstantiated
F . DTS Richard Perez	Force: At § 87(2)(b) in Brooklyn, Detective Richard Perez used physical force against § 87(2)(b)	F . Miscellaneous - Subject Retired
G . POM Abraham Echavarria	Force: At § 87(2)(b) in Brooklyn, Police Officer Abraham Echavarria used a chokehold against § 87(2)(b)	G . Unsubstantiated
H . POM Abraham Echavarria	Force: At § 87(2)(b) in Brooklyn, Police Officer Abraham Echavarria restricted § 87(2)(b)'s breathing.	H . Unsubstantiated

Officer(s)	Allegation	Investigator Recommendation
I . POM Patrick Gaines	Force: At § 87(2)(b) in Brooklyn, Police Officer Patrick Gaines used physical force against § 87(2)(b)	I . Unfounded
J . DTS Gerard Valdivia	Force: At § 87(2)(b) in Brooklyn, Detective Gerard Valdivia used physical force against § 87(2)(b)	J . Unfounded
K . DTS Claudio Sanchez	Force: At § 87(2)(b) in Brooklyn, Detective Claudio Sanchez used physical force against § 87(2)(b)	K . Unfounded
L . POM Yan Gleyzer	Discourtesy: En route to § 87(2)(b), Police Officer Yan Gleyzer spoke discourteously to § 87(2)(b)	L . Unfounded
§ 87(4-b) § 87(2)(g)		

Case Summary

On September 22, 2013, at approximately 7:33 p.m., officers from the 66th Precinct and ESU responded to § 87(2)(b) in Brooklyn, the residence of § 87(2)(b). § 87(2)(b) was transported to § 87(2)(b).

The following was alleged: PO Abraham Echavarria of the 66th Precinct spoke discourteously to § 87(2)(b) (**Allegation A**) and threatened him with force (**Allegation B**). PO Echavarria refused to provide his shield number to § 87(2)(b) (**Allegation C**). Sgt. Junmei Zhang of the 66th Precinct threatened § 87(2)(b) with physical force (**Allegation D**). PO Echavarria used physical force against § 87(2)(b) (**Allegation E**). Det. Richard Perez of ESU used physical force against § 87(2)(b) (**Allegation F**). PO Echavarria squeezed § 87(2)(b)'s carotid arteries (**Allegation G**) thereby restricting his breathing (**Allegation H**). PO Patrick Gaines, Det. Gerard Valdivia, Det. Claudio Sanchez and Det. Perez of ESU used physical force against § 87(2)(b) (**Allegations I through K**; allegation against Det. Perez was subsumed into **Allegation F**). En route to § 87(2)(b) PO Yan Gleyzer of the 66th Precinct spoke discourteously to § 87(2)(b) (**Allegation L**). At § 87(2)(b) PO Echavarria spoke discourteously to § 87(2)(b) (subsumed into **Allegation A**). § 87(4-b) § 87(2)(g)

There is no available video footage of the incident.

§ 87(2)(b) was not arrested or issued a summons as a result of this incident.

§ 87(2)(g)

Mediation, Civil and Criminal Histories

- § 87(2)(b) filed a notice of claim (Board Review 02), thereby rendering this case ineligible for mediation.
- On § 87(2)(b), § 87(2)(b) filed a notice of claim seeking \$15 million for severe personal injury (Board Review 02). This report has been submitted pending a request for the status of § 87(2)(b)'s notice of claim (Board Review 27).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer CCRB Histories

- This is the first CCRB complaint filed by and involving § 87(2)(b) (Board Review 04).
- PO Echavarria has been a member of service for eleven years and has eight CCRB allegations pleaded against him in four other cases. None of these allegations were substantiated.
 - In CCRB 200715931 and CCRB 201017426, two allegations of discourtesy were pleaded against PO Echavarria that were closed as unfounded and complainant uncooperative respectively.
- PO Gleyzer has been a member of service for eight years and this is his first CCRB complaint.
- Sgt. Zhang has been a member of service for nine years and this is his first CCRB complaint.
- PO Gaines has been a member of service for 16 years and has 16 CCRB allegations pleaded against him in five other cases.
 - In 200410472, the Board substantiated and recommended charges for four allegations of physical force and abuse of authority (question/stop, frisk/search

- and threat of force), and the NYPD disposition and penalty was command discipline A.
- In CCRB 2000107756, CCRB 200307515, CCRB 200400079, CCRB 200410472 and CCRB 200411486, five allegations of physical force were pleaded against PO Gaines and closed as exonerated, complaint withdrawn and substantiated.
 - On October 15, 2015, Det. Perez retired from the NYPD (Board Review 05).
 - Det. Valdivia has been a member of service for 19 years and has seven CCRB allegations pleaded against him in two other cases. § 87(2)(g) [REDACTED].
 - In CCRB 9800633, the Board substantiated and recommended command discipline for two allegations of force (nightstick/billy club) and abuse of authority (other), for which the NYPD disposition and penalty was command discipline B.
 - In CCRB 200306674, the Board substantiated and recommended command discipline for an allegation of discourtesy, for which the NYPD disposition and penalty were command discipline A.
 - Det. Sanchez has been a member of service for 11 years and has one CCRB allegation pleaded against him.
 - In CCRB 201303586, the allegation of physical force was closed as exonerated.

Additional Witness

In § 87(2)(b) [REDACTED]'s initial statement (Board Review 06) and subsequent phone statement on September 27, 2013 (Board Review 07), he stated that his then § 87(2)(b) [REDACTED] son § 87(2)(b) [REDACTED] was also present during the incident. When § 87(2)(b) [REDACTED] provided testimony to the CCRB (Board Review 08), he stated that no other civilian was present. Contact attempts to § 87(2)(b) [REDACTED] via telephone and correspondence were exhausted as per agency standards. On March 29, 2016, an online search of the New York City Department of Corrections Inmate Lookup Service revealed that § 87(2)(b) [REDACTED] was not incarcerated. § 87(2)(b) [REDACTED] has not contacted the undersigned investigator as of this writing. As no statement was provided to the CCRB by § 87(2)(b) [REDACTED], § 87(2)(b) [REDACTED] is referred to in the remainder of this report only as § 87(2)(b) [REDACTED].

Findings and Recommendations

Explanation of Subject Officer Identification

- § 87(2)(b) [REDACTED] (Board Review 08) said that before ESU officers arrived, he asked all of the other officers five or six times for their names and shield numbers, which they refused to provide. The investigation established that PO Echavarria, PO Gleyzer, Sgt. Zhang and PO Dian Jiang were the 66th Precinct officers that arrived before ESU. As § 87(2)(b) [REDACTED] stated that he only directly asked PO Echavarria for his shield number and addressed the others in a group, this allegation has only been pleaded against PO Echavarria in Allegation C.
- § 87(2)(b) [REDACTED] (Board Review 08) said that while the ESU officers handcuffed him and PO Echavarria punched and kicked him (addressed in Allegation E), other officers may have jabbed him a couple times, but he was uncertain because he had his head down to protect himself and could not see. PO Gaines (Board Review 09) said that while he handcuffed § 87(2)(b) [REDACTED] who was struggling, Det. Perez punched § 87(2)(b) [REDACTED] once or twice in the face. Det. Perez was the only officer that PO Gaines saw strike § 87(2)(b) [REDACTED]. As § 87(2)(b) [REDACTED] was uncertain that any other officer aside from PO Echavarria struck him, and PO Gaines said that

Det. Perez was the only officer to strike § 87(2)(b) these allegations of force have only been pleaded against PO Echavarria in Allegation E and Det. Perez in Allegation F.

- § 87(2)(b) (Board Review 08) said that in the ambulance on the way to § 87(2)(b) § 87(2)(b) the officer who was escorting him called him an “asshole.” § 87(2)(b) described this officer as a black male, but there were no black male officers on scene. While PO Echavarria is a dark-skinned Hispanic male, § 87(2)(b) distinguished him from the other officers by providing his name. PO Gleyzer (Board Review 10) acknowledged escorting § 87(2)(b) § 87(2)(b) to the hospital in the ambulance and stated that he was the only officer to do so. Thus, Allegation L has been pleaded against PO Gleyzer.

Allegation Not Pleaded

§ 87(2)(g)

Allegation A – Discourtesy: At § 87(2)(b) in Brooklyn and at § 87(2)(b) Police Officer Abraham Echavarria spoke discourteously to § 87(2)(b)

Allegation B – Abuse of Authority: At § 87(2)(b) in Brooklyn, Police Officer Abraham Echavarria threatened § 87(2)(b) with the use of force.

§ 87(2)(g)

§ 87(2)(b) (Board Review 08) alleged that before ESU officers arrived to transport him to the hospital, PO Echavarria cursed at him, seemingly to rile him up. PO Echavarria said, “Fuck you,” “Fuck your mother,” “I’m going to fuck you over,” and “I’m going to fuck you up.” PO Echavarria accompanied § 87(2)(b) to § 87(2)(b) where PO Echavarria said, “He’s an asshole,” and “Fuck him,” in reference to § 87(2)(b) PO Echavarria made other discourteous statements throughout the incident that § 87(2)(b) could not recall. § 87(2)(b) did not allege this in his phone statement on September 27, 2013 (Board Review 07). In § 87(2)(b) s original statement (Board Review 06), he said that PO Echavarria told him that he would “kick [his] ass” and to “go fuck [himself].” In the letter that § 87(2)(b) wrote to request that his case be reopened on November 15, 2015 (Board Review 01), he alleged that PO Echavarria swore and cursed at him, and threatened him more than once.

PO Echavarria (Board Review 11) denied making any of the alleged statements at any point during the incident. PO Echavarria said that § 87(2)(b) was cursing at the officers because he was upset that they were there and did not want to go to the hospital. PO Echavarria heard no officer make the alleged statements to § 87(2)(b) PO Gleyzer (Board Review 10), Sgt. Zhang (Board Review 12), PO Jiang (Board Review 13), PO Gaines (Board Review 09) and Det. Sanchez (Board Review 14) denied hearing any officer make the alleged statements. Det. Valdivia (Board Review 15) could not recall the incident and Det. Perez has retired since the incident (Board Review 05).

§ 87(2)(g)

It is therefore recommended that **Allegations A and B** be closed as ***Unsubstantiated***.

Allegation C – Abuse of Authority: At § 87(2)(b) in Brooklyn, Police Officer Abraham Echavarria refused to provide his shield number to § 87(2)(b)

§ 87(2)(g)

§ 87(2)(b) (Board Review 08) said that he first asked PO Echavarria for his shield number, as he had only been able to see his name, and PO Echavarria did not provide it. § 87(2)(b) did not allege this in his initial complaint (Board Review 06) or in his letter to the CCRB on November 15, 2015, requesting that his case be reopened (Board Review 01). During his phone statement on September 27, 2013 (Board Review 07), § 87(2)(b) said that he asked PO Echavarria for his shield number five or six times and this information was not provided.

PO Echavarria (Board Review 11) said that § 87(2)(b) did not request his shield number and denied refusing to provide this information. PO Gleyzer (Board Review 10), Sgt. Zhang (Board Review 12) and PO Jiang (Board Review 13) denied hearing a request by § 87(2)(b) for an officer's shield number or hearing any officer refuse to provide this information. PO Gaines (Board Review 09) and Det. Sanchez (Board Review 14) did not hear § 87(2)(b) make a request for an officer's shield number and witnessed no officer refuse to provide this information. Det. Valdivia (Board Review 15) could not recall the incident and Det. Perez has retired since the incident (Board Review 05).

§ 87(2)(g)

It is therefore recommended that **Allegation C** be closed as **Unsubstantiated**.

Allegation D – Abuse of Authority: At § 87(2)(b) in Brooklyn, Sergeant Junmei Zhang threatened § 87(2)(b) with the use of force.

It is undisputed in the testimonies of § 87(2)(b) (Board Review 08) and Sgt. Zhang (Board Review 12) that Sgt. Zhang threatened § 87(2)(b) with the use of force by pointing his Taser at him during the incident and that the Taser was never used. § 87(2)(g)

Sgt. Zhang, PO Gleyzer, PO Echavarria and PO Jiang agree that no officer made physical contact with § 87(2)(b) before ESU officers arrived. Sgt. Zhang said that as soon as he arrived, § 87(2)(b) refused to go to the hospital and said that he would try to fight the officers if they tried to take him. Sgt. Zhang immediately called ESU to the scene. Sgt. Zhang and the other officers told § 87(2)(b) that he had to go to the hospital. § 87(2)(b) stood atop the bed, and assumed a fighting stance with his arms raised and his hands in fists. Sgt. Zhang took out his Taser and pointed it at § 87(2)(b) who blocked his body with a pillow. Sgt. Zhang did this because he felt he may have had to use the Taser to gain § 87(2)(b)'s compliance if he engaged the officers in a physical fight. Sgt. Zhang kept the Taser out until ESU officers arrived 40 to 45 minutes later, at which time he put the Taser away. Before the ESU officers arrived, Sgt. Zhang told § 87(2)(b) that if he charged the officers, the Taser would be used. § 87(2)(b) did not try to harm himself in Sgt. Zhang's presence.

PO Gleyzer (Board Review 09) said that a couple minutes after Sgt. Zhang's arrival, Sgt. Zhang drew his Taser and pointed it at § 87(2)(b). At the time, § 87(2)(b) was yelling and cursing, and refusing to go to the hospital. PO Gleyzer did not mention that § 87(2)(b) stood on the bed at any time. § 87(2)(b) held a pillow in front of his body to block the Taser. When ESU arrived a minute or two later, Sgt. Zhang put the Taser away. PO Gleyzer initially said that § 87(2)(b) did not try to harm himself when officers were present. When PO Gleyzer was asked why he checked a box on the AIDED report (Board Review 16) indicating otherwise, PO Gleyzer said § 87(2)(b) was belligerent, yelling, and while he could not recall for certain, he thought § 87(2)(b) was hitting the bed with his fists and banging the back of his head against the headboard.

PO Echavarria (Board Review 11) and PO Jiang (Board Review 13) could not recall Sgt. Zhang pointing the Taser at § 87(2)(b). PO Echavarria and PO Jiang said that § 87(2)(b) did

not try to harm himself during the incident. PO Echavarria did not mention § 87(2)(b) ever standing on the bed. PO Jiang said that § 87(2)(b) stayed in an upright sitting position in the bed for the entire incident.

PO Gaines of ESU (Board Review 09) said that when he arrived, Sgt. Zhang was pointing the Taser at § 87(2)(b) who sat on his bed making thumb movements while holding his phone, as if he was texting. § 87(2)(b) was not reacting to the Taser being pointed at him. PO Gaines had no awareness of when Sgt. Zhang put away the Taser. When PO Gaines and Det. Valdivia approached § 87(2)(b) he stood on his bed. Det. Sanchez (Board Review 14) could not recall Sgt. Zhang pointing a Taser at § 87(2)(b) or holding one. Det. Valdivia (Board Review 15) could not recall the incident and Det. Perez has retired since the incident (Board Review 05).

§ 87(2)(a) PHL § 18(6)

Patrol Guide Procedure 212-117 (Board Review 17) states that a conducted energy device (CED; referred to as a Taser for the purpose of this report) should only be used against persons who are actively physically resisting, exhibiting active physical aggression, or to prevent individuals from physically injuring themselves or other present persons.

§ 87(2)(g)

It is therefore recommended that **Allegation D** be closed as **Substantiated**.

Allegation E – Force: At § 87(2)(b) in Brooklyn, Police Officer Abraham Echavarria used physical force against § 87(2)(b)

§ 87(2)(b), § 87(2)(g)

§ 87(2)(b) (Board Review 08) said that he was face down on his bed while the ESU officers handcuffed him, during which time he did not resist. After § 87(2)(b) was handcuffed, PO Echavarria knelt down at the foot of the bed and punched § 87(2)(b)'s face numerous times and then kicked him numerous times in the head everywhere that he could place the toe of his boot. § 87(2)(b) could not estimate how many times he was punched and kicked. § 87(2)(b) sustained a black eye, bruising to his face and cheek bones and a concussion. § 87(2)(b) alleged that PO Echavarria punched and kicked him in the face in his original statement (Board Review 06) in which he also noted that he was not entirely cooperative. In his phone statement on September 27, 2013 (Board Review 07), and in his letter to the CCRB on November 15, 2015

(Board Review 01) requesting that his case be reopened, he also alleged that PO Echavarria kicked and punched him in the face even though he was cooperative. § 87(2)(b)

On the date of § 87(2)(b)'s in-person interview, he provided photographs of his injuries to the CCRB. Photograph 1 (Board Review 18) shows a laceration to § 87(2)(b)'s left temple. Photograph 2 (Board Review 19) shows bruising and swelling underneath § 87(2)(b)'s right eye and minor scratches to the right side of his face. Photograph 3 (Board Review 20) shows a mirror image of § 87(2)(b)'s face where there is visible swelling and bruising under his right eyes (appears to be his left eye in the mirror image).

§ 87(2)(a) PHL § 18(6)

§ 87(2)(a) PHL § 18(6)

PO Echavarria (Board Review 11) denied punching or kicking § 87(2)(b) anywhere on his body including his face and stated that he did not see any officer do this. PO Echavarria said that when ESU arrived, no 66th Precinct officer had made physical contact with § 87(2)(b). Two ESU officers each grabbed one of § 87(2)(b)'s arms and placed him face-down on the bed. The ESU officers placed § 87(2)(b)'s hands behind his back and did not use any further physical force on § 87(2)(b). PO Echavarria leaned over § 87(2)(b) to place the handcuffs on him, and this was the first and only time he touched § 87(2)(b). PO Echavarria viewed Photographs 1, 2 and 3 of § 87(2)(b)'s injuries. PO Echavarria denied seeing these injuries on § 87(2)(b). § 87(2)(b) did not know how they were caused and said that nothing occurred during the incident that could have caused the injuries.

PO Gleyzer (Board Review 10) said that PO Echavarria used no physical force against § 87(2)(b). PO Gleyzer denied seeing any officer punch or kick § 87(2)(b) in the face or anywhere on his body. When ESU officers arrived to the scene, no 66th Precinct officer had made physical contact with § 87(2)(b). ESU officers told most of the people inside the room to leave because it was such a small space. When ESU officers grabbed § 87(2)(b) who was on the bed, he resisted by trying to pull away from them. PO Gleyzer left and stood in the corridor just outside the apartment. PO Gleyzer could not recall if PO Echavarria, Sgt. Zhang or PO Jiang stood in the corridor with him. PO Gleyzer did not see everything that occurred and saw no ESU officers use physical force against § 87(2)(b).

Sgt. Zhang (Board Review 12) denied seeing any 66th Precinct or ESU officer punch or kick § 87(2)(b) anywhere on his body. Sgt. Zhang said that PO Echavarria did not use physical force against § 87(2)(b) whatsoever. Sgt. Zhang said that up until ESU officers arrived, no officer from the 66th Precinct made physical contact with § 87(2)(b). When ESU officers arrived, they placed § 87(2)(b) face-down on the floor next to the bed during which time § 87(2)(b) resisted by pulling away from the officers and trying to fight. Sgt. Zhang and other 66th Precinct officers (Sgt. Zhang could not recall who) assisted ESU by handcuffing § 87(2)(b).

during which time § 87(2)(b) continued to struggle. Sgt. Zhang viewed Photographs 1, 2 and 3 of § 87(2)(b)'s injuries, which he denied seeing during the incident. Sgt. Zhang did not know how the injuries were sustained, but said it was possible that they were incurred while § 87(2)(b) was on the floor struggling with officers.

PO Jiang (Board Review 13) corroborated Sgt. Zhang's testimony, but said that when ESU officers approached § 87(2)(b) he pulled away from the officers and kicked his legs. PO Jiang viewed Photographs 1, 2 and 3 of § 87(2)(b)'s injuries. PO Jiang denied seeing the injuries during the incident and any knowledge of how they were sustained.

PO Gaines (Board Review 09) of ESU said the he and Det. Valdivia approached § 87(2)(b) who stood on his bed, and placed him face-down on the bed. § 87(2)(b) moved around to try to regain his stance. PO Gaines bent § 87(2)(b)'s arm behind him in a hammerlock position to restrict § 87(2)(b)'s movements. Det. Valdivia and Det. Perez held § 87(2)(b) down and PO Gaines could not recall where on his body. As PO Gaines was locking § 87(2)(b)'s arm in place, Det. Perez punched § 87(2)(b) in the face one to two times. PO Gaines did not attribute this to any other officer. PO Gaines saw no officer kick § 87(2)(b) in the face. PO Gaines could not recall what § 87(2)(b) was doing with his other free arm or if anything occurred that necessitated the punch because he was retrieving his handcuffs. PO Gaines could not recall if he asked Det. Perez why he punched § 87(2)(b) but § 87(2)(b) provided no information in regard to why he did this. PO Gaines viewed Photographs 1, 2 and 3 of § 87(2)(b)'s injuries. PO Gaines said that while he did not know for certain how § 87(2)(b) obtained bruising and swelling under his right eye, this could have occurred when Det. Perez punched § 87(2)(b). PO Gaines did not know how the laceration to § 87(2)(b)'s temple or the scratches to his face occurred, but said that these injuries could have been sustained during the struggle to place § 87(2)(b) in handcuffs.

Det. Perez of ESU has retired since the incident (Board Review 05).

Det. Sanchez (Board Review 14) of ESU said that he never observed any injury on § 87(2)(b). Det. Sanchez denied seeing any 66th Precinct or ESU officer punch or kick § 87(2)(b) anywhere on his body. As § 87(2)(b) refused to go to the hospital, the decision was made to place him in a restraining bag. Det. Sanchez went to retrieve the restraining bag in the hallway just outside the apartment while Det. Valdivia and Det. Perez tried to convince § 87(2)(b) to get off of the bed, where he stood yelling and cursing. When Det. Sanchez turned around, PO Gaines, Det. Valdivia and Det. Perez had § 87(2)(b) face down and restrained on the bed. § 87(2)(b) kicked his legs and flailed his arms. PO Gaines handcuffed § 87(2)(b) and put restraints on his legs, which took seconds to accomplish. Det. Sanchez viewed Photographs 1, 2 and 3 of § 87(2)(b)'s injuries. Det. Sanchez did not know how the injuries were sustained and did not see anything occur during the incident that could have caused the injuries.

Det. Valdivia (Board Review 15) of ESU could not recall the incident after viewing the ESU report he prepared for the incident (Board Review 23), § 87(2)(b)'s CCRB photograph and Photographs 1, 2 and 3 of § 87(2)(b)'s injuries.

§ 87(2)(g)

Thus, it is recommended that **Allegation E** be closed as **Unsubstantiated**.

Allegation F – Force: At § 87(2)(b) in Brooklyn, Detective Richard Perez used physical force against § 87(2)(b)

As discussed in Allegation H, PO Gaines (Board Review 09) said that while he handcuffed § 87(2)(b) Det. Perez punched § 87(2)(b) one to two times in the face. § 87(2)(b) (Board Review 08) alleged that the ESU officers threw him onto the restraining bag and dragged him out of the apartment in the restraining bag. The investigation identified Det. Perez as one of the ESU officers to arrive at the scene.

Det. Perez retired on October 31, 2015 (Board Review 05).

As Det. Perez has retired from the NYPD since the incident date, it is recommended that **Allegation F** be closed as **Miscellaneous – Subject Retired**.

Allegation G – Force: At § 87(2)(b) in Brooklyn, Police Officer Abraham Echavarria used a chokehold against § 87(2)(b)

Allegation H – Force: At § 87(2)(b) in Brooklyn, Police Officer Abraham Echavarria restricted § 87(2)(b)'s breathing.

§ 87(2)(b) (Board Review 08) said that after PO Echavarria punched and kicked him, he knelt down in front of § 87(2)(b) and tightly squeezed both of § 87(2)(b)'s carotid arteries with both hands, thereby restricting his breathing. § 87(2)(b) cried and begged PO Echavarria to stop. § 87(2)(b) became dizzy and saw stars. PO Echavarria choked § 87(2)(b) for a couple minutes, but it seemed to last forever. § 87(2)(b) did not allege this in his initial complaint (Board Review 06) or phone statement on September 27, 2013 (Board Review 07). § 87(2)(b) wrote in his letter to the CCRB on November 25, 2015 (Board Review 01), requesting that his case be reopened that PO Echavarria choked him by squeezing his neck/carotid arteries to the point that § 87(2)(b) could not breathe and went in and out of consciousness. This is the first time the allegation was made.

§ 87(2)(a) PHL § 18(6)

PO Echavarria (Board Review 11) denied squeezing § 87(2)(b)'s carotid arteries. PO Echavarria said that no contact was made with § 87(2)(b)'s neck and § 87(2)(b)'s breathing was never restricted. PO Gleyzer (Board Review 10), Sgt. Zhang (Board Review 12), PO Jiang (Board Review 13), PO Gaines (Board Review 09) and Det. Sanchez (Board Review 14) corroborated PO Echavarria's statements. Det. Valdivia (Board Review 15) could not recall the incident and Det. Perez has retired since the incident (Board Review 05).

§ 87(2)(g)

It is therefore recommended that **Allegations G** and **H** be closed as **Unsubstantiated**.

Allegation I – Force: At § 87(2)(b) in Brooklyn, Police Officer Patrick Gaines used physical force against § 87(2)(b)

Allegation J – Force: At § 87(2)(b) in Brooklyn, Detective Gerard Valdivia used physical force against § 87(2)(b)

Allegation K – Force: At § 87(2)(b) in Brooklyn, Detective Claudio Sanchez used physical force against § 87(2)(b)

§ 87(2)(g)

§ 87(2)(g) § 87(2)(b) (Board Review 08) said that after he was handcuffed, the ESU officers took him off the bed and dropped him three feet onto a restraining bag that was on the floor, resulting in pain and bruising all over his body. The ESU officers then dragged § 87(2)(b) face-down out of the apartment, including up the four steps that lead to the door. § 87(2)(b) could not say what facial injuries he incurred from this. § 87(2)(b) did not make these allegations in his initial complaint (Board Review 06), in which he explicitly stated that he did not have any issue with the ESU officers. In § 87(2)(b)'s phone statement on September 27, 2013 (Board Review 07), he stated that unspecified officers "bounced" him all over the floor and stairs, and he did not expound further. § 87(2)(b) did not make these allegations in his letter to the CCRB on November 25, 2015 (Board Review 01), requesting that his case be reopened.

PO Gaines (Board Review 09) denied the allegations that § 87(2)(b) made. PO Gaines said that the ESU officers unrolled a restraining bag and placed § 87(2)(b) inside. PO Gaines could not recall if the restraining bag was placed on the bed or the floor, but § 87(2)(b) was not thrown inside. The only time § 87(2)(b) was face down was when he was placed inside the restraining bag. PO Gaines did not have an independent recollection of the position § 87(2)(b) was in when he and other ESU officers carried him outside the apartment and placed him on the gurney, but it is protocol to place individuals in a lateral recumbent position, meaning on their left sides. PO Gaines was certain that he and the ESU officers carried § 87(2)(b) out of the apartment, and did not drag him, because he could remember extra care being taken to maneuver § 87(2)(b) out of the small space, as he was heavy and continuing to move around inside the restraining bag. It was also difficult to get out of the narrow doorway, and the officers had to go through one at a time. § 87(2)(b) was not bumped against anything and was never dropped.

Det. Sanchez (Board Review 14) also denied § 87(2)(b)'s allegations. Det. Sanchez added that the restraining bag was placed on the floor directly next to the bed when § 87(2)(b) was placed inside. § 87(2)(b) was placed into the bag on his left side so that he had no issue breathing.

Det. Valdivia (Board Review 15) could not recall the incident. Det. Perez has retired since the incident (Board Review 05), § 87(2)(g)

PO Echavarria (Board Review 11) also denied § 87(2)(b)'s allegations, but said that § 87(2)(b) was never placed into a restraining bag, and instead walked voluntarily to the stretcher while being escorted by ESU officers.

PO Gleyzer (Board Review 10) said that when ESU officers arrived, he stepped out of the apartment because the space was so small. PO Gleyzer said that he could recall that § 87(2)(b) was placed into a restraining bag because it had to be returned after the incident to ESU. PO Gleyzer could not recall how § 87(2)(b) was placed into the restraining bag or how he was brought out of the apartment. PO Gleyzer did not see § 87(2)(b) thrown onto the floor or dragged in the restraining bag.

Sgt. Zhang (Board Review 12) said that when § 87(2)(b) was placed into the restraining bag, he was not thrown, or lifted and dropped in any way. The ESU officers carried § 87(2)(b) out of the apartment and § 87(2)(b) was never dragged.

PO Jiang (Board Review 13) said that after § 87(2)(b) was handcuffed, EMS brought a stretcher into the apartment and § 87(2)(b) was placed onto it. PO Jiang initially said that nothing occurred in between § 87(2)(b) being handcuffed and being placed onto the stretcher. When PO Jiang was asked if § 87(2)(b) was placed into a restraining bag, he said that § 87(2)(b) was placed into the restraining bag before being placed onto the stretcher. PO Jiang could not recall where § 87(2)(b) was placed into the restraining bag, but did not see him thrown, dropped or dragged.

§ 87(2)(a) PHL § 18(6)

§ 87(2)(g)

It is therefore recommended that **Allegations I, J and K** be closed as ***Unfounded***.

Allegation L – Discourtesy: En route to § 87(2)(g) Police Officer Yan Gleyzer spoke discourteously to § 87(2)(b)

§ 87(2)(b) (Board Review 08) said that in the ambulance, he was screaming because he was in a lot of pain. § 87(2)(b) initially said that multiple officers were in the ambulance and they commented amongst themselves about § 87(2)(b) being an asshole. § 87(2)(b) later said that he thought only one officer was in the ambulance with him, and this officer said to him, “Shut up, asshole,” in response to him screaming in pain. In § 87(2)(b)'s previous statements, he made allegations of discourtesy against PO Echavarria, as addressed above, but made no allegation of discourtesy against any other officer in his initial statement (Board Review 06), phone statement on September 27, 2013 (Board Review 07), or in the letter that he wrote to the CCRB on November 15, 2015 (Board Review 01) requesting that his case be reopened.

PO Gleyzer (Board Review 10) denied calling § 87(2)(b) an “asshole.” PO Echavarria (Board Review 11), Sgt. Zhang (Board Review 12), PO Jiang (Board Review 13), PO Gaines (Board Review 09) and Det. Sanchez (Board Review 14) were not in the ambulance with § 87(2)(b) but said that they heard no officer call § 87(2)(b) an “asshole.” Det. Valdivia (Board Review 15) could not recall the incident. Det. Perez has retired since the incident (Board Review 05).

§ 87(2)(g)

It is therefore recommended that **Allegation L** be closed as ***Unfounded***.

§ 87(4-b) § 87(2)(g)

§ 87(2)(g), § 87(4-b)

[Redacted]

[Redacted]

[Redacted].

Squad: 16

Investigator:	_____	<u>L. Fornelli</u>	_____
	Signature	Print	Date
Squad Leader:	_____	_____	_____
	Title/Signature	Print	Date
Reviewer:	_____	_____	_____
	Title/Signature	Print	Date